

TENTATIVE RULING FOR August 17, 2026

Department S22 — JUDGE JANET FRANGIE

(Sitting on Assignment)

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2519013

MIA BENAVIDEZ VARGAS v. SAN BERNARDINO CITY UNIFIED SCHOOL DISTRICT, et al

TENTATIVE RULING

Defendant San Bernardino City Unified School District's Demurrer to First Amended Complaint:

Request for Judicial Notice:

The Request is denied as unnecessary. The Court can review any pleading in its file without such a Request.

Defendant argues two theories in support of its demurrer.

Sham Pleading Doctrine

The demurrer is overruled on this ground. The Complaint and the First Amended Complaint (FAC) are not necessarily inconsistent, and to the extent they are, Plaintiff has satisfactorily explained why she

amended the complaint for reasons aside from trying to improperly circumvent the statute of limitations.

The original Complaint states: “This action stems from the serious injuries sustained by [Plaintiff] on or about April 11, 2023.” (RJN Ex. A ¶ 18.) The Complaint references April 11, 2023 in several subsequent paragraphs as the date the bullying incident occurred. (*Id.* ¶¶ 26, 27, 38, 39, 51, 53.)

The FAC alleges: “Beginning during the spring of 2023 and continuing thereafter, Plaintiff was subjected to repeated bullying, harassment, and threatening communications.” (FAC ¶ 17.) “Those threatening messages and bullying were continuous in nature until August 28, 2023.” (FAC ¶ 18.) The FAC alleges that Plaintiff and her mother reported concerns to the school, and they “reasonably believed that school personnel would intervene and take appropriate steps to address the bullying.” (*Ibid.*) Then, on August 28, 2023, Plaintiff received more threatening messages and attempted suicide. (FAC ¶ 20.) The FAC alleges, “Plaintiff Vargas did not discover, and could not reasonably have discovered, the negligent conduct of Defendants or the causal connection between Defendants’ failures and Plaintiff’s injuries until on or about August 28, 2023,” and “[p]rior to that time, Plaintiff ... reasonably believed that school personnel were addressing the reported bullying and threats.” (FAC ¶¶ 21-22.) The FAC states, “The full extent of Plaintiff Vargas’s injuries and Defendants’ role in causing these injuries became reasonably discoverable only after the August 28, 2023, incident.” (FAC ¶ 23.)

The FAC is not necessarily inconsistent with the original Complaint. The original Complaint limits its allegations to a distinct incident that happened on April 11, 2023, while the FAC adds allegations that the bullying and harassment began in the spring and continued through August 28, 2023. Plaintiff also explains in the FAC that while the first incident occurred in the spring of 2023, she did not understand that the school was negligent because she believed the school would resolve the bullying. (FAC ¶ 18.) It was not until August 2023 that Plaintiff realized the school was at fault and there was a causal connection between the school’s negligence and her suicide attempt. (FAC ¶¶ 21-22.)

Plaintiff has thereby satisfactorily explained why she amended the complaint to add more details. Although the effect of the amendment might be that the FAC is not barred by the statute of limitations, as the original Complaint would have been, adding details to a complaint does not run afoul of the sham pleading doctrine if there is a satisfactory explanation for any inconsistencies, as there is here. To any extent that the FAC is inconsistent with the original Complaint, the FAC explains why the date of injury was expanded to August 2023.

Government Claims Form Variance

Defendant also argues that there is a fatal variance between Plaintiff's Government Claim, which lists the date of injury as April 17, 2023, and the FAC, which expands the date of injury from April 2023 through August 28, 2023. (Mtn. at p. 6-7.)

The Government Tort Claims Act is set forth at Government Code section 910, et seq. The Act generally states a tort action may not be filed against a public entity unless a claim has been made directly to that entity in a manner that complies with the requirements of the Act. (Gov. Code, § 945.4.) The primary function of the Tort Claims Act is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate avoid litigation by settling meritorious claims. (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 455 (*City of San Jose*)). Timely claim presentation is not merely a procedural requirement, but rather a condition precedent to plaintiff maintaining an action against a defendant and thus an element of a plaintiff's cause of action. (*Id.* at p. 454.) Government Code section 945.4 provides that "no suit for money or damages may be brought against a public entity . . . until a written claim [] has been presented to the public entity and has been acted upon by the board or has been deemed to have been rejected by the board." A complaint against a government entity must allege compliance with the Claims Act; if it does not, it is subject to a demurrer. (Gov. Code, § 945.4; *State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

"[T]he facts underlying each cause of action in the complaint must have been fairly reflected in a timely claim." (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 447 (*Stockett*)). In *Fall River Joint Unified Sch. Dist. v. Superior Court* (1988) 206 Cal.App.3d 431, 435 (*Fall River*), the Court of Appeal held that there was a fatal variance where the facts of the Complaint consisted of an "entirely different factual basis than what was set forth in the tort claim" and the plaintiff attempted to add a cause of action to an amended complaint that was not set out in the Government Claim.

Here, the Government Claims form asks: "When did Injury or Damage occur?" (RJN Ex. B.) Plaintiff wrote, "4/17/2023." (*Ibid.*) The description of the incident is: "Mia faced bullying messages, threats on school campus as well as physical injuries and emotional distress." (*Ibid.*) Plaintiff also wrote, "School Employees were negligent and careless in that they failed to exercise ordinary care in supervising students at Curtis Middle School as to prevent and not to cause injuries to [Plaintiff]." (*Ibid.*) The form was signed on September 8, 2023. (*Ibid.*)

The Claims Form thereby alleges a distinct date—April 17, 2023—when Plaintiff was bullied and the school was negligent in supervising its students to prevent that bullying. (*Ibid.*) In contrast, the FAC alleges that the bullying occurred from April 2023 through August 28, 2023, culminating in threatening

messages sent on August 28, 2023, which prompted Plaintiff's suicide attempt. (FAC ¶ 20.) The FAC alleges that Plaintiff believed the school would prevent the bullying from April through August 2023, and it was only in August 2023 that she realized the school was negligent because the school did not prevent repeated incidents. (FAC ¶¶ 21-22.) The FAC thereby is predicated on the continued bullying incidents that happened after April 17, 2023—most notably the threatening messages sent on August 28, 2023—and the school's continued failure to prevent the bullying over several months, which are facts not set forth in the Claims Form.

The FAC thereby alleges an “entirely different factual basis than what was set forth in the tort claim.” (*Fall River, supra*, 206 Cal.App.3d at p. 435.) The Claims Form does not give Defendants notice of the continued, repeated bullying through the summer of 2023, such that Defendants could investigate the events in the summer of 2023 and potentially settle the claim. (See *City of San Jose, supra*, (1974) 12 Cal.3d at p. 455.) In receiving the Claims Form, Defendants would have had notice only of the April 17, 2023, incident. Because the FAC contains a fatal variance from the Claims Form, the demurrer is sustained, with 30 days leave to amend. The Court cannot say at this point whether or not any amendment may still trigger the operative statute of limitations given the potential impact of the discovery rule.

Trial Setting Conference:

The Court continues the Trial Setting Conference to _____, 2027, at ____ a.m. in Department S22. Plaintiff is directed to give notice to Defendant of the court's ruling and trial date.

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CIVSB2513017

SHAPIRO PROPERTY SERVICE CORPORATION v. JONATHAN THOMPSON, et al

Defendant Jonathan Thompson's Motion for Relief from Jury Trial Waiver:

The motion is granted. The right to a jury trial in civil actions is guaranteed by the state Constitution (Cal. Const., art. I, § 16) and is unaffected by any corresponding federal right. (*Nationwide Biweekly Administration, Inc. v. Superior Court* (2020) 9 Cal.5th 279, 293.)

A court may, in its discretion upon just terms, allow a trial by jury, even though there was a waiver. (Code Civ. Proc., § 631, subd. (g).) The grounds upon which relief will be granted are committed to the sound discretion of the trial court. Since the right to a jury trial is constitutional in nature, any doubt must be resolved in favor of upholding the right. (*Bishop v. Anderson* (1980) 101 Cal.App.3d 821, 823, disapproved on other grounds by *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 790-791, fn. 10.)

In *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766 (*TriCoast Builders*), the California Supreme Court laid out a non-exhaustive list of considerations that a court may consider in determining whether to relieve a party from jury waiver, i.e., hardship to other parties, the timeliness of the request, the party's willingness to comply with applicable jury fee obligations, and the party's reasons for seeking the relief. (*Id.* at p. 783.)

When the arguments and evidence are fully considered, all factors laid out in *TriCoast Builders, supra*, 15 Cal.5th 766, weigh in favor of granting relief from jury waiver. Defendant immediately sought relief upon retaining new counsel and the Parties were notified of Defendant's intention to try the matter before a jury almost six months before the current trial date. Further, Defendant has indicated his willingness to pay the required jury fees, and it is sufficiently demonstrated that Defendant's initial waiver was inadvertent. It is immaterial that Defendant has failed to present a declaration from his former attorney to corroborate Defendant's testimony. Lastly, although Plaintiff argues that it would suffer prejudice if the matter is to be tried before the jury, the purported hardship identified by Plaintiff is not the type of prejudice that would warrant denying relief from waiver. (See *Johnson-Stovall v. Superior Court* (1993) 17 Cal.App.4th 808, 811 [prejudice not shown by need to prepare motions in limine, enlarged exhibits, and jury instructions unless inadequate time also shown].) Here, Plaintiff has not demonstrated that there would be inadequate time to prepare for a jury trial, as opposed to a court trial, with the current timelines.

Jury fees must be posted within ten days of today's hearing.

Moving party is directed to give notice.
